

RESOLUTION OF

PROCEDURE OF WARNING

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On February 10, 2023, A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection.

The complaint is directed against the INSTITUTE FOR DIVERSIFICATION AND ENERGY SAVINGS with NIF Q2820009E (hereinafter, the respondent or IDAE).

The reasons on which the complaint is based are as follows:

The complainant has installed a photovoltaic panel and battery system in their home. To carry out this investment, they have requested a subsidy from the Institute for Diversification and Energy Savings, that is, from the respondent.

According to the complainant, the Energy Foundation of the Community of Madrid has informed them that to be eligible for the subsidy payment, they are required to place an informational sign on the door of their house for a period of 5 years. This sign must include the beneficiary's details, the project budget, and the amount of the subsidy received from the public body.

The complainant believes that this obligation violates data protection regulations, as it imposes the disclosure of their identifying data and that of the work they have carried out to all passersby, who should not have access to such information.

Finally, they state that they have no objection to placing the sign as long as their name and the financial amounts do not appear, and that no neighbor or passerby can access that private information.

Along with this complaint, the complainant submits the following relevant documentation:

- An email regarding the informational sign in the residential sector, dated 09/02/2023, which the complainant sent to the Energy Foundation of the Community of Madrid, at the address "****EMAIL.1", and the response from this entity. The details of these emails are noted in the First Proven Fact of this resolution.

- "Image Manual for Royal Decree 477/2021", published by IDAE. It includes an example of "Advertising sign or signaling of the action", designed to collect data related to the beneficiary, total investment, amount of the aid, among others. Additionally, this example includes links to download an editable sign and the following information:

"The recipient must place a publicly visible advertising sign or signaling of the action in which the financial aid received will be mentioned, with the emblem 'Recovery, Transformation and Resilience Plan - Funded by the European Union - NextGenerationEU', following the instructions established in the IDAE image manual regarding signage."

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent, so that they could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

In response to this request, IDAE states that "(...) while it must be considered that the complainant is obliged by European Union law to communicate and publicize the funding obtained for the installation subject to the aid program, regulated by Royal Decree 477/2021, of June 29, in accordance with the provisions of its Article 20.1 and section All.B of its Annex II, as well as Article 13.2 of the call approved by the Resolution of the Energy Foundation of the Community of Madrid of October 28, 2021, modified by Resolution of July 19, 2022, this Institute will consult the General Secretariat of European Funds of the Ministry of Finance and Public Function.

This consultation will aim to determine whether, applying the principle of proportionality, the removal of the signs of the beneficiary's data (when it concerns a natural person) and the economic data, budget, and granted aid could, in the opinion of the General Secretariat of European Funds, contravene the communication obligations of the Recovery, Transformation and Resilience Plan. If the General Secretariat of European Funds confirms that the removal of this information does not compromise

European funding, this Institute will modify the Image Manual related to Royal Decree 477/2021, of June 29, in accordance with that pronouncement.

THIRD: On May 10, 2023, in accordance with Article 65 of the LOPDGDD, the complaint submitted by the complainant was admitted for processing.

FOURTH: The General Subdirectorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following aspects:

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28001 – Madrid

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3/23

In the course of the aforementioned investigative proceedings, a response was received on 28/06/2023 from IDAE, reporting the result of the inquiry sent to the General Secretariat of European Funds of the Ministry of Finance and Public Administration, in the following terms:

First.- That, as part of the decision adopted by the Institute for the Diversification and Saving of Energy (IDAE) pursuant to the information request received from this body on 23 May 2023, an inquiry was made to the General Secretariat of European Funds of the Ministry of Finance and Public Administration regarding the publicity obligations of the Recovery, Transformation, and Resilience Plan (PRTR) for beneficiaries who are natural persons. This inquiry was made to determine whether, in application of the principle of proportionality, the removal from the posters of the beneficiary's data, the investment, and the aid granted (when the beneficiary is a natural person), could, in the opinion of that General Secretariat of European Funds, contravene the communication obligations of the Recovery, Transformation, and Resilience Plan, in order that, if necessary, the Image Manual related to Royal Decree 477/2021 of 29 June be modified to ensure full compliance with data protection regulations. A copy of the inquiry made to the General Secretariat of European Funds of the Ministry of Finance and Public Administration is attached as Annex I.

Second.- That, on 29 May 2023, a response was received from the General Secretariat of European Funds of the Ministry of Finance and Public Administration indicating that the removal from the posters of the beneficiary's data, when they are natural persons, would not contravene the communication obligations of the Recovery, Transformation, and Resilience Plan and, therefore, does not compromise European funding, given that the examples of informative posters included in the Communication Obligations Manual are intended for works to be carried out by legal entities, not natural persons, and there is no official regulation that expressly requires the inclusion of the beneficiaries' data in the posters if they are natural persons.

Third.- That, taking the above into account, this Institute has proceeded to modify the image manual for the aid program regulated by Royal Decree 477/2021, which is the subject of the complaint, which can be consulted at the following link:

***[URL.1](#)

and will proceed to review the image manuals of the different aid programs published on the website in order to specify that, in the case of beneficiaries who are natural persons, it is not necessary to include the name and surname of the beneficiary and the economic data, budget, and aid granted in the signage posters of the action.

IDAE requests, in light of the above, that the filing of the complaint be agreed upon.

FIFTH: On 15 January 2024, the Director of the Spanish Agency for Data Protection agreed to initiate a warning procedure against the complained party, for the alleged infringement of Article 5.1 f) and 32 of the GDPR, classified in Articles 83.5 and 83.4 of the GDPR, as very serious and serious, and for the purposes of

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28001 – Madrid

prescription in Articles 72.1 a) and 73 f) of the LOPDGDD respectively.

SIXTH: The notification of the aforementioned initiation agreement, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was received on January 16, 2024, as evidenced by the acknowledgment of receipt in the file.

SEVENTH: On February 5, 2024, the respondent submitted a written statement requesting the dismissal of the claim based on the following allegations:

"First: Firstly, there is absolute disagreement with the opening of the referenced warning procedure since, as evidenced in the file, it is established that this Institute has acted at all times with due diligence regarding the claim that prompted the initiation of said procedure, implementing measures and rectifying any conduct that may have caused harm to the claimant as well as a breach of data protection regulations.

In this context, the notified Agreement has not taken into account or considered the manner in which the aids regulated by Royal Decree 477/2021 are managed, with the actions of this Institute responding, at all times, to a fully regulated procedure that establishes multiple controls to ensure compliance with the aims and objectives pursued with such aids. Thus, the IDAE is the competent body to coordinate and monitor the aid programs, although their processing and management correspond directly to each beneficiary autonomous community.

All aid programs regulated by Royal Decree 477/2021 are financed with funds from the Recovery and Resilience Mechanism, established by Regulation (EU) 2021/241 of the European Parliament and of the Council, of February 12, 2021, as they are included in the Recovery, Transformation and Resilience Plan, and correspond to the types of investment contemplated therein regarding the investment of its Component 7 (C7.I1), for the development of innovative renewable energies, integrated into buildings and production processes, as well as, regarding storage with renewable energy sources, to the investment of its Component 8 (C8.I1), deployment of energy storage, promotion of behind-the-meter storage and sectorally integrated, which is executed jointly with the previous one. The proper development of the Recovery, Transformation and Resilience Plan is evaluated through the milestones and objectives assigned to each investment and component, approved within the framework of the Plan, which are a prerequisite for the disbursement of the corresponding funds to Spain.

Although IDAE is the one that publishes on its website the instructions on formats and models adjusted to the requirements it receives for the execution and management of both the Recovery, Transformation and Resilience Plan and the Recovery and Resilience Mechanism, established by Regulation (EU) 2021/241 of the European Parliament and of the Council, of February 12, 2021, these are based on the Communication Manual for managers and beneficiaries of the Recovery Plan funds,

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28001 – Madrid

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Transformation and Resilience prepared by the General Secretariat of European Funds of the Ministry of Finance and Public Function, whereby the requirements for the publicity of the aid received are situated within a process perfectly regulated by various European and national norms, where different administrations at the national and European levels intervene, each within its own sphere of responsibility. Thus, the various applicable processes are periodically reviewed through internal and external audits aimed at ensuring their reliability, committing to the implementation of constant improvement actions.

Additionally, and as already highlighted in the response to the prior information request, it must be taken into account that the personal data corresponding to the beneficiaries of public aid is subject to publication in the National Subsidies Database, all in accordance with the provisions of Article 20 of Law 38/2003, of November 17, General Subsidies Law, to guarantee the right of citizens to know all

subsidies and public aid called at any given time and to contribute to the principles of publicity and transparency.

Therefore, the request for a grant of this type by a natural person necessarily implies that the beneficiary's data will be published in said database, becoming public data.

Second: This Institute, following a principle of proactive responsibility, acted ex officio, and with the utmost urgency, making the necessary inquiry to the General Secretariat of European Funds of the Ministry of Finance and Public Function, which has, among other competencies, the coordination and monitoring of actions related to European funds and their financing, as well as the budgetary relations with the European Union. As a result of this inquiry, this Institute was able to proceed with the update of the aid manuals, removing the requirement to include the personal data of the beneficiary when it concerns a natural person, upon confirmation that this did not contravene the communication obligations of the Recovery, Transformation, and Resilience Plan.

Furthermore, it was communicated to all managing bodies of the autonomous communities, responsible for the processing and granting of subsidies, the need to rectify the corresponding notice, as it was not required that it include the personal data of beneficiaries who are natural persons. A copy of the communication made is attached as document No. 1.

All these measures have been carried out as soon as it was known that the processes established by the regulations could be improved to further preserve the rights and freedoms of citizens.

It is important to emphasize that this Institute had no prior knowledge of the claim that underpins the referenced Agreement, as the claimant did not address this Institute at any time, but rather the Energy Foundation of the Community of Madrid (FENERCOM), which is the entity that calls for the aid requested by the claimant. Therefore, there has been no bad faith or deceit in establishing a requirement for the publicity of certain personal data of natural persons. Rather, it has perhaps been a case of an inadequate extensive interpretation of the regulations.

C/ Jorge Juan, 6

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28001 – Madrid

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6/23

applicable, promptly and duly rectified, without implying that it can be asserted, in the abstract, that "adequate measures" are not in place.

Third: Furthermore, it cannot be overlooked that the claimant, by stating that they would have "no problem placing the sign," determines the key element that allows us to infer that said sign was never placed, and therefore, in no case could the confidentiality of personal data have been compromised, nor could any harm have been caused to the claimant.

Fourth: Regarding the classification of an infringement under Article 5.1.f) of the GDPR and Article 32 of the GDPR, this Institute disagrees since, as stated in the first allegation, appropriate technical and organizational security measures are in place, and thus, in no case, as mentioned, has the confidentiality of any personal data been compromised, meaning that the rights of the claimant have not been violated, and therefore the alleged infringement cannot be considered.

Article 77 of the LOPDGDD establishes that: "(...) the competent data protection authority shall issue a resolution sanctioning the same with a warning. The resolution shall also establish the measures that should be adopted to cease the conduct or correct the effects of the infringement that may have been committed." This party does not understand that this warning procedure has been initiated, given that the nature of the warning is to impose measures to cease the conduct or correct the effects of an infringement that may have been committed. From IDAE, ex officio, before the initiation of this warning procedure, documentation was provided evidencing that the interpretation of the guidelines of the General Secretariat of European Funds of the Ministry of Finance and Public Function regarding the publicity obligations of the Recovery, Transformation, and Resilience Plan (PRTR) had been modified when preparing the model information sign, and this fact was also communicated to all the bodies of the autonomous communities responsible for granting the subsidies, thus all pertinent measures were taken, with no additional measures that could be carried out.

On the other hand, in the Agreement to initiate the warning procedure, a warning is proposed for the

non-compliance with Article 5.1 f) of the GDPR (principle of integrity and confidentiality) and for non-compliance with Article 32 (security of processing). Article 5.1 f) states that personal data shall be: "processed in such a way as to ensure an adequate level of security of personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction or damage, by applying appropriate technical or organizational measures ('integrity and confidentiality')," limiting itself to stating in the aforementioned Agreement that: "In accordance with the evidence available at this moment in the agreement to initiate the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that the known facts could constitute an infringement, attributable to the party being claimed, for violation of Article 5.1 f) of the GDPR." That is, the AEPD proposes to impose a warning for infringement of Article 5.1.f of the GDPR due to "evident indications that the respondent violated Article 5.1.f of the GDPR."

C/ Jorge Juan, 6

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28001 – Madrid

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7/23

GDPR", being these the only justification and/or motivation for the imposition of the warning. If that body considers sanctioning this Institute for certain indications, these must be fully proven, as it is evidently not possible to construct certainties based on mere probabilities. As has been established, there was no violation of Article 5 since there is no evidence that the poster was placed.

The alleged non-compliance with Article 5.1 f) is classified as a very serious infringement in the event of a "substantial violation of the mentioned articles." Similarly, the "substantial violation" of Article 32.1 is categorized as serious. This Institute understands, therefore, that there is a process regulated by various European and national norms, with technical and organizational security measures as previously stated.

In any case, this Institute disagrees with the view that the conduct subject to the Agreement to initiate the warning procedure gives rise, in the opinion of the AEPD, to two independent infringements (Article 5.1 f) and Article 32 of the GDPR). By virtue of the above, we consider that both provisions protect a common legal interest, and therefore, in this case, IDAE should not be warned twice for the same infringement.

In light of the above, we bring to attention the Guidelines 04/2022 on the calculation of fines under the GDPR published by the European Data Protection Board, which provides for the possibility that, in the event that a conduct leads to multiple infringements, the attribution of one infringement excludes the attribution of another. This could be due to the principle of specialty or consumption, which are often applied when the provisions protect the same legal interest. In such cases, it would be contrary to the norm to sanction the offender twice for the same offense. That said, we refer to the principle of specialty, which determines that a more specific provision replaces a more general provision. For this reason, we consider that the alleged infringement of the principle set forth in Article 5.1 f) and Article 32 of the GDPR overlap congruently, and one infringement could replace the other, making it contrary to the regulations to seek to warn IDAE for these two infringements independently.

The same can be interpreted from the Principle of Consumption, which applies in cases where the infringement of one provision regularly leads to the infringement of the other, as is the case here. Additionally, it should be emphasized that the events that occurred do not involve intent or negligence; proactive measures have been taken to mitigate any damage or harm that could have been caused to the affected parties, additional technical and organizational measures have been applied, and cooperation with the supervisory authority has been conducted with the utmost transparency and diligence.

It is therefore established that there has been no violation of the cited provisions, let alone a substantial one.

With your written allegations, you provide a copy of the communication that, as you have stated, IDAE directed to the managing bodies of the Autonomous Communities.

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28001 – Madrid
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8/23

This concerns an email dated 05/07/2023, addressed to "****EMAIL.2", with the subject "RD 477/2021: Image Manual – Version 2". This email includes a link to said "Manual" and warns that it replaces the previous one and includes modifications to the advertising posters for individuals, leaving only technical data of the subsidized installation.

EIGHTH: On 21/03/2024, through the website "****URL.2", the Spanish Agency for Data Protection accesses the "Image Manual for Royal Decree 477/2021". The details of this verification are recorded in the Sixth Proven Fact of this resolution.

On the same date, access is also granted to the "Image Manual of the IDAE related to signage". The details of this verification are recorded in the Seventh Proven Fact. In its section 4.6, it includes a link that leads to the "Communication Manual for managers and beneficiaries of the funds of the Recovery, Transformation and Resilience Plan prepared by the General Secretariat of European Funds of the Ministry of Finance and Public Function". The information contained in section 3.1 of this latter Manual, dedicated to "Posters and plaques", is reproduced in the Third Proven Fact of this resolution.

In light of all that has transpired, the following are considered proven facts by the Spanish Agency for Data Protection in this procedure:

PROVEN FACTS

FIRST: The claimant has been a beneficiary of a subsidy for the installation of a photovoltaic panel system and batteries in their home, under the aid program regulated by Royal Decree 477/2021, of June 29, which approves the direct granting to the autonomous communities and the cities of Ceuta and Melilla of aids for the execution of various incentive programs linked to self-consumption and storage, with renewable energy sources, as well as the implementation of renewable thermal systems in the residential sector, within the framework of the Recovery, Transformation and Resilience Plan. For this reason, the acting Administration required the claimant, in order to be eligible for the subsidy payment, to place an informative poster for a period of 5 years, which had to include their personal data related to name and surname, the project budget, and the amount of the subsidy received.

On 09/02/2023, the claimant sent an email to the entity Fundación de la Energía de la Comunidad de Madrid, at the address "****EMAIL.1", in which they inquire as follows:

"I see in the attached document that the obligation to have the informative poster falls on the applicants for aid in the industrial sector: (attached is a screenshot corresponding to a fragment of the image manual). But it says nothing about cases like mine, which is residential. Are we obligated, in the case of applicants..."

C/ Jorge Juan, 6
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28001 – Madrid
sedeagpd.gob.es
9/23

of the residential sector aid to place that sign on the door of our house?

Can you send me a reference regarding this in the corresponding Royal Decree?"

The aforementioned entity responded to this email on 10/02/2023 informing the following:

"In the same manual, it refers to the final recipients of the aid."

Subsequently, on the same date of 10/02/2023, the claimant filed a complaint with the AEPD considering that the installation of the aforementioned sign visible to any passerby violates the regulations on the protection of personal data. In their complaint, they warn that they would have no objection to placing the sign as long as it does not include personal information.

SECOND: The IDAE entity has been assigned the competence to coordinate and monitor the aid programs, with the processing corresponding to each Autonomous Community or City. To comply with the publicity obligations that the aid program entails, and in accordance with the provisions of the

aforementioned Royal Decree 477/2021 (Article 20 “Publicity”), IDAE published the “Image Manual for Royal Decree 477/2021,” in which the models of “Advertising sign or signaling of the action” that interested parties must install in a visible place for the public are established, as a mandatory requirement to access the benefit of the aid.

This sign was designed by IDAE to collect data related to the beneficiary, total investment, and amount of the aid, among others. The same Manual includes links to download an editable sign and the following information:

“The recipient must place in a well-visible location for the public, an advertising sign or signaling of the action in which the financial aid received will be mentioned, with the emblem “Recovery, Transformation and Resilience Plan - Funded by the European Union - NextGenerationEU,” following the instructions established in the IDAE image manual regarding signage.”

THIRD: The IDAE entity, in its written allegations to the opening of the present warning procedure, has stated that the instructions on signage that it publishes, its formats and models, “are based on the ‘Communication Manual for managers and beneficiaries of the funds of the Recovery, Transformation and Resilience Plan prepared by the General Secretariat of European Funds of the Ministry of Finance and Public Function.’”

Section 3.1 of this latter “Manual” is dedicated to “Signs and plaques”:

“3.1.- SIGNS AND PLAQUES

Both in the MRR Regulation and in the Financing Agreement, a wide margin is allowed to use the different elements that give visibility to the projects of the PRTR. The placement of signs is a good option to comply with communication obligations. In this sense, the PRTR does not distinguish between works and interventions based on the amount of their cost, a criterion that was previously used in the communication obligations of the Structural Funds.

LOCATION: It is always recommended to place the sign or plaque in a location that is...

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28001 – Madrid

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10/23

as visible as possible within the funded project to reach the largest number of citizens.

SIZE: Signs or plaques must be placed in a reasonable and proportionate size, with no mandatory minimum size, leaving it to the manager to determine the size that best ensures maximum visibility. As always, and as far as possible, it is encouraged to use synergies between other EU funding and the MRR, as the communication and visibility requirements are similar.

The following technical characteristics are recommended regarding the logos:

- . They should occupy at least 25% of the surface area of the sign or plaque.
- . They should be located in the upper or lower band of the sign or plaque.

When the beneficiaries are individuals and the execution takes place in private spaces, it is suggested to use smaller signs, at least A3 size, that always display the mandatory logos.

RECOMMENDED CONTENT:

- . Name of the beneficiary (legal entity).
- . Name of the project/operation.
- . Deadline (optional).
- . Budget (optional).
- . LOGOS:
 - . Emblem of the European Union + Funded by the European Union/Next Generation EU.
 - . Recovery, Transformation and Resilience Plan.
 - . Emblem of the corresponding managing Ministry.

FOURTH: The entity IDAE, in its response to the information request sent by the Inspection Services of the AEPD, stated that “on May 29, 2023, a response was received from the General Secretariat of European Funds of the Ministry of Finance and Public Function indicating that the removal of the beneficiary's data from the signs, when they are individuals, would not contravene the communication

obligations of the Recovery, Transformation and Resilience Plan and, therefore, does not compromise European funding, given that the examples of informative signs included in the Communication Obligations Manual are intended for works to be carried out by legal entities, not individuals, and there is no official rule that expressly requires the inclusion of beneficiary data on the signs if they are individuals.”

FIFTH: The entity IDAE, in its response to the information request sent by the Inspection Services of the AEPD, reported having “modified the image manual for the aid program regulated by Royal Decree 477/2021 subject to the complaint” and that “it will proceed to review the image manuals of the different aid programs published on the website to clarify that, in the case of individual beneficiaries, it is not necessary to include the name and surname of the beneficiary and the economic data, budget, and aid granted on the signage of the action.”

SIXTH: On March 21, 2024, through the website “***URL.2”, the Spanish Agency for Data Protection accessed the “Image Manual for Royal Decree 477/2021” to verify the model of advertising or signage sign provided for individuals without economic activity who are recipients of funds when the execution takes place in private buildings and properties. According to this “Manual,” the details of the information that must be included on this sign are as follows:

“Project covered by the incentive program linked to self-consumption and storage, with renewable energy sources, as well as the implementation of renewable thermal systems in the residential sector within the framework of the Recovery, Transformation and Resilience Plan, funded by the European Union - Next Generation EU.

Power (kW):

Storage capacity (KWh):

Royal Decree 477/2021.”

SEVENTH: On March 21, 2024, through the website “***URL.2”, the Spanish Agency for Data Protection accessed the “IDAE Image Manual regarding signage,” verifying that it contains the following information:

“ADVERTISING SIGN OR SIGNAGE OF THE ACTION

The recipient must place a temporary sign in a location that is clearly visible to the public, in a size proportional to the amount of funding (minimum size A3), with information about the project, mentioning the financial aid received, with the emblem “Recovery, Transformation and Resilience Plan - Funded by the European Union - Next Generation EU,” the PRTR logo, and the logo of the aid line,” following the instructions established in the IDAE image manual regarding signage.

An example of an advertising sign or signage of the action is provided:

“Project covered by the Energy Transition Plan in the General State Administration, within the framework of the Recovery, Transformation and Resilience Plan funded by the European Union - Next Generation EU

Beneficiary

Total investment

Total amount of aid.”

In this Manual, there is no differentiated example of an advertising sign for individual recipients of funding.

In its section 4.6, it includes a link that leads to the “Communication Manual for managers and beneficiaries of the funds of the Recovery, Transformation and Resilience Plan prepared by the General Secretariat of European Funds of the Ministry of Finance and Public Function.”

LEGAL GROUNDS

I

Competence

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28001 – Madrid

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12/23

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU)

2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.3 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure. Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II
Procedure
Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Considering the nature of the facts that have led to these proceedings and the concurrent circumstances, this warning procedure is being followed in accordance with the provisions of Article 64.3 of the LOPDGDD.

III
Preliminary Issues. Responsibility of IDAE

In the present case, it has been established that, as a result of obtaining a grant for the installation of a photovoltaic panel system and batteries in their home, the claimant was required to place an informational sign in a visible location of their home for a period of 5 years. This sign was to include, among other things, the beneficiary's details, the project budget, and the amount of the grant received from the public body.

The requirement for the sign to display this information by the beneficiary of the aid is established in the regulations governing the grant, which stipulate the need to publicize and make visible the funding obtained, configured as a mandatory requirement for accessing it.

The responsibility for the content of the sign lies with the IDAE entity.

It is true, as indicated by this entity in its written allegations, that the requirement for publicity and visibility of the granted aids is contemplated in various regulations, both European and national, including Royal Decree 477/2021, of June 29, which regulates the aid program to which the party applied.

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28001 – Madrid
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13/23

Claimant. According to this Royal Decree, the IDAE entity is responsible for coordinating and monitoring the aid programs, although their processing and management correspond directly to each Autonomous Community and City.

This coordination function includes the preparation of instructions regarding the publicity of the aids. In compliance with this function, IDAE prepares the corresponding manuals, which are available on its website. Article 20 "Publicity" of Royal Decree 477/2021 states:

"1. Any reference to the actions subject to the aids regulated by this royal decree in publications, dissemination activities, websites, and in general in any media must comply with the requirements set forth in the manual or manuals of Image of the incentive programs that will be available on the IDAE website, which will include the Ministry for Ecological Transition and the Demographic Challenge within the framework of the Recovery, Transformation and Resilience Plan and the Recovery and Resilience Mechanism, established by Regulation (EU) 2021/241 of the European Parliament and of the Council, of February 12, 2021, all in accordance with what is established in this regard, and under the terms provided in Article 18.4 of Law 38/2003, of November 17, and 31 of its Development Regulation, approved by Royal Decree 887/2006, of July 21.

Furthermore, the installations must be signposted according to what is indicated in the manual or manuals of image (...)."

The actions carried out have allowed for the verification that, in the case of subsidies received by individuals, no regulation establishes the obligation imposed by IDAE regarding the inclusion of the personal data of the beneficiaries in the posters advertising the funding.

This has also been expressed by the General Secretariat of European Funds of the Ministry of Finance and Public Function in response to the inquiry raised by the IDAE entity during the process of transferring the claim that has led to the present procedure. This General Secretariat informed that the removal of the beneficiary's data from the posters, when it is an individual, does not contravene the communication obligations of the Recovery, Transformation and Resilience Plan.

The Communication Manual for managers and beneficiaries of the funds of the Recovery, Transformation and Resilience Plan, prepared by the General Secretariat of European Funds, on which IDAE states that the instructions on the publicity of the aids published on its website are based, does not include that requirement for individuals. This Manual includes instructions on the "Recommended Content" of the posters and plaques that give visibility to the projects with the following indications:

"Name of the beneficiary (legal entity).

Name of the project/operation.

Deadline (optional).

Budget (optional).

LOGOS:

. Emblem of the European Union + Funded by the European Union/Next

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14/23

Generation EU.

. Recovery, Transformation and Resilience Plan.

. Emblem of the corresponding managing Ministry."

For all these reasons, the AEPD considers that the entity being claimed against is responsible for the facts at hand, as it carries out this activity in its capacity as the data controller, given that it determines the purposes and means of such activity, pursuant to Article 4.7 of the GDPR:

"data controller" or "controller": the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing; if the law of the Union or of the Member States determines the purposes and means of the processing, the data controller or the specific criteria for its appointment may be established by the law of the Union or of the Member States.

The entity IDAE itself acknowledges these circumstances by stating in its written allegations the following: "there has therefore been no bad faith or deceit in establishing a requirement for the publicity of certain personal data of natural persons. Rather, it has perhaps been an inadequate extensive interpretation of the applicable regulations, which has been promptly and duly rectified."

IV

Response to the allegations

1. In this case, the entity IDAE XXX is attributed a violation of the confidentiality principle established in Article 5.1.f) of the GDPR, under which the data controller is obliged to process personal data in such a way as to ensure an adequate level of security, "including protection against unauthorized or unlawful processing" and against accidental loss, destruction, or damage, through the application of appropriate technical or organizational measures.

However, IDAE claims that the complainant did not place the sign, so the confidentiality of their personal data could not have been compromised, their rights have not been violated, and the alleged infringement cannot be considered.

Indeed, the complainant, before installing the aforementioned sign with information regarding the subsidy received, indicating their name and surname, consulted the managing administration of the subsidy expressing their disagreement with the publication of that personal data and, not receiving a satisfactory response, filed a complaint with this Agency that has led to the present proceedings. They even indicated that they would have no objection to placing the informational sign in a visible location if the inclusion of personal information were not mandatory.

Therefore, it is not recorded in the proceedings that the information had been exposed, so the attribution of the infringement of what is established in Article 5.1.f) of the GDPR must be rendered ineffective.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

15/23

The confidentiality obligation imposed on the data controller by Article 5.1(f) of the GDPR is an obligation of result, such that for the provision to be considered violated, the confidentiality of the data must be breached. Thus, if this provision is infringed, we would be facing a result-based infringement. This is in contrast to the security obligation imposed on the data controller by Article 32 of the GDPR, whose infringement would constitute a means-based infringement.

As specified by the Supreme Court ruling of 15/02/2022 (cassation appeal 7359/2020), “In obligations of means, the commitment undertaken is to adopt the technical and organizational measures, as well as to carry out diligent activity in their implementation and use, aimed at achieving the expected result with means that can reasonably be classified as suitable and sufficient for its attainment; hence, they are referred to as 'diligence' or 'behavior' obligations.” (The emphasis is ours)

For greater clarity, some paragraphs from the aforementioned Supreme Court ruling, Administrative Litigation Chamber, of 15/02/2022 (cassation appeal 7359/2020) are transcribed below. The second Legal Ground of the Supreme Court states:

“[...] the issue that is of cassational interest consists of determining whether violations of the Data Protection Law due to failures in security measures [...] should be examined in light of the result and, [...] independently of the means and preventive measures that could have been adopted.

[....]

And it adds in its third Legal Ground:

“The obligation to adopt the necessary measures to ensure the security of personal data cannot be considered an obligation of result, which implies that once a leak of personal data to a third party occurs, there is liability regardless of the measures adopted and the activity carried out by the data controller or processor.

In obligations of result, there is a commitment to fulfill a specific objective, ensuring the achievement of the proposed result, in this case, guaranteeing the security of personal data and the non-existence of leaks or security breaches.

In obligations of means, the commitment undertaken is to adopt the technical and organizational measures, as well as to carry out diligent activity in their implementation and use, aimed at achieving the expected result with means that can reasonably be classified as suitable and sufficient for its attainment; hence, they are referred to as 'diligence' or 'behavior' obligations.

The difference lies in the responsibility in each case, as while in the obligation of result one is liable for a harmful result due to a failure of the security system, whatever its cause and the diligence used. In the

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

16/23

The obligation of means is satisfied by establishing technically adequate measures and implementing and using them with reasonable diligence.

In these latter cases, the sufficiency of the security measures that the responsible party must establish must be related to the state of technology at any given moment and the level of protection required in relation to the personal data processed, but a result is not guaranteed. [...] In the same vein, Article 31 [sic] of the European Union Regulation 2016/679 currently states that the appropriate technical and organizational measures regarding the security of processing are to be taken "Considering the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the varying probabilities and severity of risks to the rights and freedoms of natural persons [...]".

It is not enough to design the necessary technical and organizational means; their correct implementation and appropriate use are also necessary, so the responsible party will also be liable for the lack of diligence in their use, understood as reasonable diligence considering the circumstances of the case.

This distinction is also reflected in both the European Union Regulation 2016/679, [...], and in the LOPD 3/2018 of December 5, [...] by differentiating as autonomous obligations and infringements between the failure to adopt those technical and organizational measures that are appropriate to guarantee an adequate level of security relative to the risk of processing (Article 73 paragraphs d, e, and f) and the lack of due diligence in the use of the implemented technical and organizational measures (Article 73. g)." (The underlining is ours)

Furthermore, it is a fact that IDAE had provided, through its image manuals, for the placement of an informational poster by the beneficiaries of aid who are natural persons, which makes it responsible for a lack of adequate security measures to prevent access to information by third parties, in accordance with the provisions of Article 32 of the GDPR, which is examined in the legal grounds that follow.

2. IDAE expresses its disagreement with the fact that the conduct subject to the procedure gives rise to two infringements, for violation of Articles 5.1.f) and 32 of the GDPR, which protect a common legal interest, understanding that it is being warned twice for the same infringement.

However, considering the decision made in the previous point regarding the non-existence of an infringement of the provisions of Article 5.1.f) of the GDPR, this allegation is rendered ineffective.

3. IDAE claims that it took proactive measures by updating the image manuals to eliminate the requirement to include the personal data of the beneficiaries in the informational posters when they are natural persons, understanding that the initiation of the present warning procedure was not appropriate, the nature of which is the imposition of measures to cease the conduct or correct the effects of the infringement committed.

This Agency does not share this approach, as it is appropriate to analyze and

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

17/23

to resolve what is appropriate according to the factual situation that is the subject of the claim. Another matter is to consider the reaction of the responding party to the reported facts, regarding the obligation to adopt measures to align its actions with the regulations.

In any case, IDAE has not demonstrated the modification of all its manuals related to aid programs that may grant subsidies to individuals. On the contrary, as stated in Background Eight, this Agency has verified the content of the "IDAE Image Manual regarding signage," confirming that the example of the sign it includes indicates the beneficiary's data, without providing any example of a differentiated advertising sign for individuals receiving funding.

V

Article 32 of the GDPR

Article 32 of the GDPR establishes the following regarding the security of processing:

"1. Taking into account the state of the technology, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the varying likelihood and severity of risks to the rights and freedoms of individuals, the controller and the processor shall implement appropriate

technical and organizational measures to ensure a level of security appropriate to the risk, which may include, among others:

- a) the pseudonymization and encryption of personal data;
- b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services;
- c) the ability to restore the availability and access to personal data promptly in the event of a physical or technical incident;
- d) a process for regularly verifying, assessing, and evaluating the effectiveness of the technical and organizational measures to ensure the security of processing.

2. In assessing the appropriateness of the level of security, particular consideration shall be given to the risks presented by the processing of data, in particular as a result of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

3. Adherence to an approved code of conduct pursuant to Article 40 or to an approved certification mechanism pursuant to Article 42 may serve as an element to demonstrate compliance with the requirements set out in paragraph 1 of this article.

4. The controller and the processor shall take measures to ensure that any person acting under the authority of the controller or the processor and having access to personal data may only process such data on instructions from the controller, unless required to do so by Union or Member State law.”

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

18/23

The facts revealed indicate a lack of technical and organizational measures that allow for the display of personal data of individuals who are beneficiaries of aid on the informational posters that must be installed in a visible location for a period of 5 years.

It should be noted that the GDPR in the aforementioned provision does not establish a list of security measures applicable according to the data being processed, but rather states that the data controller and the processor shall apply technical and organizational measures that are appropriate to the risk posed by the processing, taking into account the state of the art, the costs of implementation, the nature, scope, context, and purposes of the processing, as well as the risks of likelihood and severity for the rights and freedoms of the data subjects.

Furthermore, the security measures must be adequate and proportionate to the identified risk, indicating that the determination of the technical and organizational measures must be carried out considering: pseudonymization and encryption, the ability to ensure confidentiality, integrity, availability, and resilience, the ability to restore availability and access to data after an incident, verification processes (not audits), evaluation, and assessment of the effectiveness of the measures. In any case, when assessing the adequacy of the level of security, particular attention shall be paid to the risks presented by the data processing, such as the destruction, loss, or accidental or unlawful alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data that could cause physical, material, or immaterial harm.

In this same sense, Recital 83 of the GDPR states that:

“(83) In order to maintain security and prevent processing from infringing the provisions of this Regulation, the controller or the processor must assess the inherent risks of the processing and apply measures to mitigate them, such as encryption. These measures must ensure an adequate level of security, including confidentiality, taking into account the state of the art and the cost of their implementation in relation to the risks and the nature of the personal data that must be protected.

When assessing the risk in relation to data security, the risks arising from the processing of personal data must be taken into account, such as the destruction, loss, or accidental or unlawful alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data, which may particularly cause physical, material, or immaterial harm.”

The responsibility of the entity being claimed against is determined by the lack of security measures,

as it is responsible for making decisions aimed at effectively implementing appropriate technical and organizational measures to ensure an adequate level of security relative to the risk to safeguard the confidentiality of the data, preventing access to it by third parties.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

19/23

That is to say, the security measures must aim to ensure that personal data is adequately protected, particularly and as it concerns here, against unauthorized access.

The procedures involving the processing of personal data must be defined in such a way that the confidentiality of personal data is preserved, articulating the appropriate security measures that prevent unauthorized access. To this end, both physical and logical access control measures must be implemented to restrict access to the data. However, in this case, the interested parties are required to communicate their own personal data, through the placement of an informative sign, allowing unauthorized third parties to have physical access to the information without any limitations.

Therefore, the known facts constitute an infringement, attributable to the claimed party, for violation of Article 32 of the GDPR.

VI

Classification and qualification of the infringement for the purposes of the statute of limitations of Article 32 of the GDPR

The aforementioned infringement of Article 32 of the GDPR entails the commission of the infringements classified in Article 83.4 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" provides:

"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 10,000,000 EUR or, in the case of an undertaking, an amount equivalent to a maximum of 2% of the total global annual turnover of the previous financial year, opting for the higher amount:

a) the obligations of the controller and the processor under Articles 8, 11, 25 to 39, 42, and 43; (...)"

In this regard, the LOPDGDD, in its Article 71 "Infringements" establishes that "Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements."

For the purposes of the statute of limitations, Article 73 "Infringements considered serious" of the LOPDGDD indicates:

"Based on what is established in Article 83.4 of Regulation (EU) 2016/679, the following are considered serious and shall be subject to a two-year statute of limitations for infringements that entail a substantial violation of the articles mentioned therein, and in particular, the following:

f) The failure to adopt those technical and organizational measures that are appropriate to ensure a level of security adequate to the risk of the processing, as required by Article 32.1 of Regulation (EU) 2016/679."

VII

Declaration of infringement

In accordance with Royal Decree 18/2014, of January 17, which approves the Statute of the Institute for the Diversification and Saving of Energy (IDAE), its legal nature is that of a public business entity, and according to Article 104 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (hereinafter Law 40/2015), public business entities, in forming the will of their bodies, in exercising the administrative powers attributed to them, are governed by Law 40/2015, in the aspects specifically regulated for them, as well as by their creation law, their statutes, the Law on Common Administrative Procedure, Royal Legislative Decree 3/2011, of November 14, Law 33/2003, of November 3, and the rest of the general and special administrative law norms applicable to them, for which Article 77 "Applicable regime for certain categories of controllers or processors" of the LOPDGDD applies, which provides the following:

"1. The regime established in this article shall apply to the processing for which they are responsible or

processors:

- a) The constitutional bodies or those with constitutional relevance and the institutions of the autonomous communities analogous to them.
- b) The judicial bodies.
- c) The General Administration of the State, the Administrations of the autonomous communities, and the entities that make up the Local Administration.
- d) The public bodies and entities of public law linked to or dependent on the Public Administrations.
- e) The independent administrative authorities.
- f) The Bank of Spain.
- g) The public law corporations when the purposes of the processing relate to the exercise of public law powers.
- h) The public sector foundations.
- i) The Public Universities.
- j) The consortiums.
- k) The parliamentary groups of the General Courts and the Legislative Assemblies of the autonomous communities, as well as the political groups of the Local Corporations.

2. When the controllers or processors listed in paragraph 1 commit any of the infringements referred to in Articles 72 to 74 of this organic law, the competent data protection authority shall issue a resolution declaring the infringement and establishing, where appropriate, the measures that should be adopted to cease the conduct or correct the effects of the infringement that has been committed, with the exception of that provided for in Article 58.2.i) of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016.

The resolution shall be notified to the controller or processor, to the body to which it hierarchically depends, where applicable, and to the affected parties who had the status of C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

21/23

of the interested party, where applicable.

3. Without prejudice to what is established in the previous section, the data protection authority shall also propose the initiation of disciplinary actions when there are sufficient indications for it. In this case, the procedure and the sanctions to be applied will be those established in the legislation on disciplinary or sanctioning regimes that are applicable.

Furthermore, when the infringements are attributable to authorities and executives, and it is proven that there are technical reports or recommendations for the treatment that have not been duly addressed, the resolution imposing the sanction will include a reprimand naming the responsible position and will order publication in the corresponding Official State or regional Gazette.

4. The resolutions related to the measures and actions referred to in the previous sections must be communicated to the data protection authority.

5. The actions carried out and the resolutions issued under this article will be communicated to the Ombudsman or, where applicable, to the analogous institutions of the autonomous communities.

6. When the competent authority is the Spanish Agency for Data Protection, it will publish on its website, with due separation, the resolutions related to the entities mentioned in section 1 of this article, with an explicit indication of the identity of the person responsible or in charge of the treatment who has committed the infringement. When the competence corresponds to an autonomous data protection authority, the publicity of these resolutions will be governed by its specific regulations. This provision establishes that the procedures arising from infringements in the area of personal data protection committed by the categories of data controllers or processors listed in section 1 will be resolved, in any case, with a declaration of the infringement.

VIII

Adoption of measures

Once the infringement is confirmed, the aforementioned Article 77 of the LOPDGDD provides that the resolution issued may establish the measures that the infringing entity must adopt to cease the

infringing conduct, correct the effects of the infringement that has been committed, and carry out the necessary adjustment, in this case, to the requirements set forth in Article 32 of the RGPD, also having to provide the AEPD with the evidence of compliance with what is required.

Thus, it is appropriate to require the responsible entity to adjust its actions to the personal data protection regulations, to the extent expressed in the previous Legal Grounds.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

22/23

In this act, it is established what the committed infringement has been and the facts that give rise to the violation of the data protection regulations, from which it is clearly inferred what measures are to be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments to implement them corresponds to the sanctioned party, as it is the data controller who fully knows their organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the RGPD and the LOPDGDD.

However, the AEPD considers it necessary to require the summoned party to notify this Agency within one month of the adoption of measures that ensure the adequate security of personal data in accordance with the provisions of Article 32 of the RGPD, in all the aid programs it coordinates.

The AEPD is aware that the summoned party has proceeded to correct the manual corresponding to the aid program to which the complainant was entitled, which contained the content of the poster that the complainant was to install, but it is not evidenced that all the image manuals provided by IDAE have been modified.

It is warned that failure to comply with the order to adopt measures imposed by this agency in the present resolution may be considered an administrative infringement in accordance with the provisions of the RGPD, classified as an infringement in its Articles 83.5 and 83.6, which may motivate such conduct to initiate a further administrative sanctioning procedure.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been proven,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ISSUE A WARNING to the INSTITUTE FOR DIVERSIFICATION AND ENERGY SAVINGS (IDAE), with NIF Q2820009E, for an infringement of Article 32 of the RGPD, classified in Article 83.4 of the same Regulation, qualified as serious, for the purposes of prescription, in Article 73 f) of the LOPDGDD.

SECOND: TO ORDER the INSTITUTE FOR DIVERSIFICATION AND ENERGY SAVINGS (IDAE), with NIF Q2820009E, that pursuant to Article 77 of the LOPDGDD, within one month from the date this resolution becomes final and enforceable, to adopt the necessary measures to adjust its actions to the personal data protection regulations, to the extent expressed in Legal Ground VIII of this resolution. Within the same indicated period, the INSTITUTE FOR DIVERSIFICATION AND ENERGY SAVINGS (IDAE) must inform and justify to this Agency the compliance with the imposed measures.

THIRD: TO NOTIFY this resolution to the INSTITUTE FOR DIVERSIFICATION AND ENERGY SAVINGS (IDAE).

FOURTH: TO COMMUNICATE this resolution to the Ombudsman, in accordance with the provisions of Article 77.5 of the LOPDGDD.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

23/23

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6

of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the agreement to adopt provisional measures may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. This provisional suspension would be considered terminated if the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this agreement to adopt provisional measures, or if such an appeal is filed but a request for its provisional suspension is not made in the same procedure to the judicial body.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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